Questionnaire: PSP Investments – AAA Egg Company

MN-55024

Deadline to respond: 12 November 2026

The Australian Competition and Consumer Commission (**ACCC**) is currently assessing the proposed acquisition of AAA Egg Company Pty Ltd (**AAA Egg Company**) by Perlaide Eggs 2 Pty Limited (**Perlaide**), an indirectly wholly owned subsidiary of the Public Sector Pension Investment Board (**PSP Investments**), (the **Acquisition**).

For further information about the ACCC's assessment of the Acquisition, see the ACCC's Acquisitions Register.

PSP Investments' remedy offer

On 30 October 2026, PSP Investments made a remedy offer to the ACCC which includes behavioural commitments that seek to prevent the flow of competitively sensitive information, and commercial coordination, between AAA Egg Company and Sunny Queen Australia Pty Ltd (**SQ**), an entity which is indirectly partially owned by PSP Investments (the **remedy offer**).

The ACCC is assessing the remedy offer and is seeking information and views from stakeholders on the remedy offer. The questions below request views in respect of the remedy offer, and a summary of the remedy offer is available on the ACCC's Acquisitions Register.

The ACCC invites you to provide submissions or information in response to the questions below by **12 November 2026** via email to mergers@accc.gov.au with a copy to mergersru@accc.gov.au, with the title *Submission re: PSP Investments – AAA Egg Company – remedy offer.* The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@accc.gov.au with a copy to mergersru@accc.gov.au, with the title *Request for call re: PSP Investments – AAA Egg Company – remedy offer*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your

response or submission, or in a separate document such as the ACCC's general confidentiality claims template). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions about the remedy offer

If you have not previously provided a submission to the ACCC on this matter, please:

1. Provide a brief description of your business or organisation, including any commercial relationships with PSP Investments and/or AAA Egg Company.

2. Outline any concerns you have regarding the impact of the Acquisition on competition.

The remedy offer

3. Describe the extent to which, and how, PSP Investments' remedy offer would address any competition concerns you have in relation to the Acquisition.

4. Describe any risks you consider may arise in the implementation of PSP Investments' remedy offer, including monitoring and enforcement of the long-term behavioural commitments.

General

5. Provide any additional information or comments you consider relevant to the ACCC's consideration of the remedy offer, including whether there is anything additional you would expect to see in the remedy offer that is not currently included.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's confidentiality quick guide**.**